

		The Cross-Complaint fails to allege any factual basis for Movant's liability for equitable indemnity and contribution. Therefore, the demurrer is sustained with leave to amend. Cross-Complainant shall file an amended Cross-Complaint within fifteen (15) days of service of notice of this order.
2	Forbes vs. Forbes 2026-01549362 Demurrer to 1st Amended Complaint Motion to strike Portions of Complaint CMC OSC for Failure to Appear at CMC	Defendants Jon Forbes and Sherry Forbes' Demurrer and Motion to Strike Portions of the First Amended Complaint, the CMC and the OSC for failure to appear are CONTINUED to November 30, 2026, at 1:45 p.m. The parties/counsel failed to meet and confer. Defendants are required to meet and confer "in person, by telephone, or by video conference" at least five days before the date the demurrer and motion to strike are due. (Code Civ. Proc., §§ 430.41, 435.5.) Here, Defendants' responsive pleading was due by 5/13/26, i.e. 30 days after personal service of the FAC. (See Code Civ. Proc., §§ 430.40, subd. (a), 435, subd. (b)(1); ROA 34, 36.) Therefore, the deadline to meet and confer was 5/8/26. Defendants did not attempt to meet and confer until 5/10/26, two days after the deadline. When Plaintiff responded on 5/11/26, they ignored her email and filed the motions about 2.5 hours later. Defendants' untimely meet and confer efforts were inadequate and lacked good faith. The parties/counsel are ORDERED to meet and confer in person, by telephone, or by video conference regarding the issues raised in the demurrer and motion to strike. The parties shall discuss whether an amended complaint would resolve some or all of the issues raised in the demurrer and motion to strike. If so, the parties should submit a stipulation to file an amended complaint. No later than five court days before the continued hearing date, Defendants are ORDERED to file a supplemental declaration describing compliance with this order, including whether any issues were settled by the code compliant meet and confer efforts. Failure to comply with this order may result in sanctions against the non-compliant party and/or their counsel pursuant to Code of Civil Procedure section 177.5. Defendants shall give notice.
3	Trabuco Highlands Community Association vs. Loeffler 2022-01297235	Motion to Strike Defendant Jennifer Loeffler's Motion to Strike the Second Cause of Action from the Second Amended Complaint is GRANTED.

Demurrer to Amended Complaint Motion to Strike Portions of Complaint	Plaintiff concedes it exceeded the Court's grant of authority to amend the complaint in its ruling granting judgment on the pleadings. The Second Cause of Action is ORDERED stricken. Demurrer Defendant Steven Rader's Demurrer to the Second Amended Complaint (SAC) is OVERRULED in part and SUSTAINED in part with leave to amend. Plaintiff has sufficiently alleged a claim for fraudulent conveyance against Rader. "Shareholders of a corporation are not normally liable for its torts, but personal liability may attach to them through application of the 'alter ego' doctrine [citation], or when the shareholder specifically directed or authorized the wrongful acts." (<i>Wyatt v. Union Mortgage Co.</i> (1979) 24 Cal.3d 773, 785.) The SAC sufficiently alleges Rader personally participated in the wrongful act. (SAC, ¶ 49.) Additionally, there are no allegations or judicially noticed facts which support a finding a prefiling order was required under Civil Code section 1714.10(a). The SAC alleges Rader advised Loeffler to execute the transfer but does not allege Rader was acting as Loeffler's attorney. (SAC, ¶ 49.) Rader has not presented any allegation or judicially noticed facts which support the claim he ever represented Loeffler. Thus, Section 1714.10(a) does not apply to these claims at the pleading stage. Accordingly, the demurrer is overruled as to the 1st cause of action. Plaintiff has failed to allege a claim for declaratory relief against Rader. "In California, two conditions must be met before the alter ego doctrine will be invoked. First, there must be such a unity of interest and ownership between the corporation and its equitable owner that the separate personalities of the corporation and the shareholder do not in reality exist. Second, there must be an inequitable result if the acts in question are treated as those of the corporation alone." (<i>Sonora Diamond Corp. v. Superior Court</i> (2000) 83 Cal.App.4th 523, 538.) Plaintiff has not sufficiently alleged the second condition of an inequitable result to invoke the alter ego doctrine to pierce Rhino's corporate veil and hold Rader personally
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		liable. Additionally, Plaintiff has not alleged any controversy between it and Rader. The SAC does not allege Rader had any interest in the conveyance. Accordingly, the demurrer is sustained as to the 3rd cause of action. The Court finds the SAC is capable of amendment and, thus, grants leave to amend. (See <i>Scott v. City of Indian Wells</i> (1972) 6 Cal.3d 541, 549.)
4	Sanchez vs. Ford Motor Company 2024-01402402 Motion to Strike or Tax Costs	Defendant Ford Motor Company's (Ford) Motion to Tax Costs is GRANTED in part for a total amount taxed of \$363.00. Deposition costs are recoverable under Code of Civil Procedure section 1033.5, subdivision (a)(3)(A). Ford moves to tax \$3,813.88 for the cost associated with the deposition of Ford's person most knowledgeable on the ground it was unnecessary and unreasonable. Ford contends Plaintiff chose a significantly more expensive vendor and asked unnecessary questions, including about the witnesses' qualifications when he had been deposed hundreds of times, including by Plaintiff's firm. Ford does not contend the deposition itself was not reasonably necessary but disputes Plaintiff's counsel's choice of vendor and method of conducting the deposition. The Court DENIES the request to tax Item No. 4(e) in the amount of \$3,813.88. Ford also moves to tax a \$325.00 cancellation fee for an October 17 deposition. Ford contends it notified Plaintiff on October 13 as soon as it learned the witness became unavailable and provided an alternative date. (Abramova Decl., ¶ 6, Ex. A.) Ford contends no reasonable vendor charges a cancellation fee under these circumstances. Plaintiff contends it was issued a \$325.00 charge for the cancelled deposition. (Zakharian Decl., ¶ 23.) While Plaintiff further contends it "incurred" that charge and "was responsible" (Zakharian Decl., ¶¶ 24, 25) for that charge, Plaintiff does not demonstrate she actually paid for that charge. The Court GRANTS the request to tax Item No. 4(e) in the amount of \$325.00. Item 8b(5): Witness Fees - \$500.00